



File No.: EXP202211136

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On September 26, 2022, a complaint was filed with the Spanish Agency for Data Protection against GRUPO MUNICIPAL PODEMOS RECUPERAR BADAJOZ (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant submits a complaint after conducting a search on "the main internet search engine" using their ID number and obtaining a result that leads to a record of an extraordinary session of the Badajoz City Council, containing their full identity number along with their name and surname and their home address, alongside those of other individuals who were named as members of the electoral tables for the general elections of June 26, 2016.

The complainant addresses the Agency to receive information on whether the responsible party of the website recuperarbadajoz.info has the authority to publish the disputed information, especially considering the time that has elapsed. Along with the complaint, a copy of the disputed publication is provided.

As verified, the web address to access the document,

<https://recuperarbadajoz.info/wp-content/uploads/2017/09/Pleno-Extraordinario-30-mayo-2016.pdf>, is linked to a website defined as "Website of Recuperar Badajoz, promoted by PODEMOS for the 2015 municipal elections, as well as the Municipal Group Podemos Recuperar Badajoz in the Badajoz City Council."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party and to PODEMOS, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The notification to the complained party, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 27, 2022, as evidenced by the acknowledgment of receipt in the file.

The notification to the party PODEMOS, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not acknowledged by the responsible party within the available timeframe, being understood as acknowledged in accordance with the provisions of Article 43.2 of the LPACAP on October 21, 2022, as evidenced by the certificate in the file.

On November 17, 2022, a response letter from GRUPO MUNICIPAL PODEMOS RECUPERAR BADAJOZ was received by this Agency indicating the following:

"The website referred to by the complainant is not operational. When attempting to access it, the message appears:

Oops! This page could not be found.

It seems there is nothing at that location. Would you like to try searching?

Find us

Address C/Manuel Fernández Mejías 15

06002 Badajoz

About this site

Website of Recuperar Badajoz, promoted by Podemos for the 2015 municipal elections, as well as the Municipal Group Podemos Recuperar Badajoz in the Badajoz City Council.

In the 2015 municipal elections, the political party Podemos decided not to participate. Nevertheless,

there were individuals who submitted lists for those municipal elections and used the party's name, as can be seen in the message reproduced above.

It is not possible to verify if access can be obtained to a record with personal data that is found on that page since the website is untraceable or empty.

In any case, the website referred to by the complainant is not owned by the political party Podemos, nor is the site where it was hosted. The party PODEMOS does not know who purchased the domain and created that website."

THIRD: On December 26, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

From the Data Inspection, the following actions are carried out:

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Information stored by GOOGLE is obtained from the website <https://recuperarbadajoz.info> › contacto "Municipal Group Podemos Recuperar Badajoz. Plaza de España 1, 06002 Badajoz – 2nd Floor political groups hallway. Phone: 924 210 041. podemosrb@aytobadajoz.es"

On January 20, 2023, a call is made to the number ***TELEFONO.1 and contact is established with the Municipal Group of Unidas Podemos, who state that the responsible parties for the website [Recuperarbadajoz.info](https://recuperarbadajoz.info) are not Unidas Podemos but the previous municipal group that has disappeared due to lack of representation in the City Council.

They are asked if they know who might have been responsible and indicate that A.A.A. was the person responsible for Recuperar Badajoz. An internet search is conducted, and possible contact details provided include a phone number ***TELEFONO.2 and an email ***EMAIL.1.

A phone call is made on January 20, 2023, repeatedly to the number ***TELEFONO.2 without being able to establish communication.

A search in Google's cache yields the following contact emails:

***EMAIL.2

contacto@recuperarbadajoz.info

***EMAIL.1

Requests are sent to the aforementioned email addresses, receiving a response that informs the following:

A.A.A. was elected by the Recuperar Badajoz Party (...).

Once the elections were held, he was ***PUESTO.1 (...).

After the term for which he was elected ended, (...) from 2019 he has not engaged in any political activity.

Furthermore, his participation in the Party, in addition to the political activities he developed, was as a member, without holding any position of responsibility in the organizational chart and his management throughout his time of membership.

Regarding the identifying data of the person responsible for the website www.recuperarbadajoz.info, it is stated that when he joined the candidacy for the municipal elections, the party already existed and its governing bodies were appointed and fulfilling their management, organization, and communication functions. As a member of the party, he knew the people who made it up, but he cannot determine the responsible person as the communication and social media actions of the Party were not part of his political activities.

Regarding the plenary sessions of the City Council published on that website, it is stated that the

plenary sessions of the City Council, which he attended and participated in, can be consulted on the Online Plenary Channel of the website <https://www.badajozonline.tv/category/canal-plenos-online/> (Municipal Television of the City Council of Badajoz) and on its YouTube channel <https://www.youtube.com/@BadajozOnlineTv>. He recalls that there were links to these videos on the website www.recuperarbadajoz.info.

Regarding the purpose of publishing this information, he considers that he cannot provide a specific answer contrary to what could be considered a logical and common reasoning for any communication and dissemination activity.

Regarding whether he has received any exercise of the right to data cancellation from any affected party, he indicates that at no time has he received any communication regarding computer-related issues from anyone, and the only online interactions he maintains are those he conducts through his own personal social networks, outside of any political organization.

The Party ceased its political activity and was recently dissolved; he has contacted the organic responsible parties of the Party or those who were at certain times and they have informed him that the website www.recuperarbadajoz.info has ceased to be accessible on the network as a consequence of the disappearance of the Party, and its hosting has been canceled and the renewal of its domain has been planned not to occur.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Principles regarding processing

Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

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c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("data minimization");"

III

Principles relating to processing

Letter f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ("integrity and confidentiality")."

IV

Conclusion

In order to identify the responsible entity that was publishing the personal data of the complainant, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which

states the following:

<<1. Before the adoption of the decision to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when the investigation of processing involving mass traffic of personal data is necessary.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed twelve months from the date of the admission decision or from the date of the decision to initiate it when the Spanish Data Protection Agency acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.>>

After conducting the investigations mentioned in the Facts, the following has been concluded:

Regarding the content indicated in the complaint, it is verified that it has been removed.

The website was not created by the UNIDAS PODEMOS Party; it was created by the Recuperar Badajoz Party.

The website contained links to videos of the plenary sessions of the City Council at the website <https://www.badajozonline.tv/category/canal-plenos-online/> (Municipal Television of the City Council of Badajoz) and on its YouTube channel <https://www.youtube.com/@BadajozOnlineTv>.

The Recuperar Badajoz Party ceased its political activity and was recently dissolved; the website www.recuperarbadajoz.info has become inaccessible on the internet due to the disappearance of the Party, and its hosting has been canceled with no renewal of its domain planned.

Thus, as it has not been possible to attribute responsibility for the processing of the complainant's data to the entity that created the page and uploaded the information; in accordance with what has been indicated, by the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the MUNICIPAL GROUP PODEMOS RECUPERAR BADAJOZ and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

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